

Tentative Rulings and Resolution Review Hearings
September 8, 2026
Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

- 1. Please mute your telephone until your case is called.**
- 2. Please do not place the call on hold.**
- 3. Minimize all background noise during your call.**
- 4. Please identify yourself, each time, prior to addressing the court.**
- 5. Disconnect when the court has completed your case or cases.**
- 6. The court prohibits the recording of these proceedings.**

8:30 a.m. – Law & Motion

BAXTER, ET AL. VS. NISSAN NORTH AMERICA INC

CASE NUMBER: 26CV-0210163

Tentative Ruling on Demurrer: Defendant Nissan North American Inc. demurs to the entirety of the First Amended Complaint filed by Plaintiffs Denaro Joseph Baxter and Cassie Lee Smith. Plaintiffs oppose the Demurrer.

Meet and Confer. Defendant has provided evidence of sufficient effort to meet and confer prior to filing the demurrer.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). The Court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or

conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Defendant demurs to the entirety of the First Amended Complaint on the basis that the First and Second causes of action are uncertain, unintelligible, ambiguous, and fail to state facts sufficient to constitute a cause of action.

First Cause of Action for violation of the Magnuson Moss Warranty Act. “Magnuson-Moss permits a “consumer” to bring an action for damages and other relief when a warrantor breaches its obligations under a warranty or under the act.” *Atkinson v. Elk Corporation of Texas* (2006) 142 Cal.App.4th 212, 222. “Magnuson-Moss “calls for the application of state written and implied warranty law, not the creation of additional federal law,” except in specific instances in which it expressly prescribes a regulating rule.” *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 833. “[F]ailure to state a warranty claim under state law necessarily constitute[s] a failure to state a claim under Magnuson-Moss.” *Id.*

The First Cause of Action is dependent on the survival of the Second Cause of Action for breach of warranty. As explained below, the demurrer is sustained without leave to amend as to the Second Cause of Action. Consequently, the demurrer is also **SUSTAINED** as to the First Cause of Action without leave to amend.

Second Cause of Action for breach of warranty. The Second Cause of Action specifically alleges breach of an implied warranty of merchantability under the California Uniform Commercial Code. Defendant argues that they are precluded from liability because the law only applies to distributors, not manufacturers. Defendant relies heavily on *Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399, in which plaintiff alleged breach of an implied warranty under the Song-Beverly Act. While the court in *Ruiz Nunez* held that “in the sale of used consumer goods, liability for breach of implied warranty lies with distributors and retailers, not the manufacturer, where there is no evidence the manufacturer played any role in the sale of the used car to plaintiff,” the court was analyzing the application of Civ. Code § 1791. This is not applicable here. Plaintiffs bring a claim under the California Commercial Code, where implied warranties are governed by Cal. Com. Code § 2314. Defendants have not provided sufficient authority that they are not precluded from liability based on Cal. Com. Code § 2314.

Defendant additionally argues that Plaintiffs fail to allege the requisite privity required to maintain a cause of action for breach of warranty. “In California, a ‘plaintiff alleging breach of warranty claims must stand in vertical privity’ with the defendant.” *Annunziato v. eMachines, Inc.* (2005) 402 F.Supp.2d 1133. “The term vertical privity’ refers to links the chain of distribution of goods. If the buyer and seller occupy adjoining links in the chain, they are in vertical privity with each other.” *Osborne v. Subaru of America, Inc.* (1988) 198 Cal.App.3d at 656 n. 6. “[T]here is no privity between the original seller and a subsequent purchaser who is in no way a party to the original sale.” *Burr v. Sherin Williams Co.* (1954) 42 Cal.2d 682. Here, the First Amended Complaint fails to allege vertical privity between Plaintiffs and Defendant. Plaintiffs assert that the vehicle was purchased used. They were therefore not a party to the original sale, and no additional facts have been provided to support that Plaintiffs can allege vertical privity. The demurrer is **SUSTAINED** without leave to amend as to the Second Cause of Action for failure to state facts sufficient to constitute a cause of action.

The Demurrer is **SUSTAINED** without leave to amend as to all causes of action of the First Amended Petition on the grounds that Plaintiffs have failed to state facts sufficient to constitute a cause of action. Defendant provided a proposed order that will be executed by the Court. The clerk is directed to close the file and vacate any future hearing dates upon processing of the order.